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VENEZUELA

Human Rights Developments

The dramatic political upheavals in Venezuela following the election on December 6, 1998, of former army Lt. Col. Hugo Chávez Frías created uncertain prospects for human rights. Backed by a loose-knit coalition, the Patriotic Front (Polo Patriótico, PP), Chávez was sworn in on February 2, just two days before the anniversary of a failed military coup he led in 1992 against the government of Carlos Andrés Pérez. Chávez's comeback, with 57 percent of the vote, was attributed to widespread disillusionment and anger at politicians of the two traditional parties, Democratic Action (Acción Democrática, AD) and the Christian Democratic Independent Committee for Political Electoral Organization (Comité de Organización Política Electoral Independiente, COPEI). Venezuela's political system had been described as a "partidocracy," due to the preeminence of these two party machines, which had poorly administered the country's resources. Chávez promised to give Venezuela a new constitution (its twenty-sixth), eliminate corruption, patronage, and nepotism, and carry out extensive economic and social reforms. However, his messianic aspirations were tempered by a pragmatic awareness of political realities.

In a plebiscite held on April 25, an overwhelming 85 percent of the electorate gave Chávez a mandate to hold elections for a constituent assembly to write a new constitution. Chávez supporters won 121 of the assembly's 131 seats in elections held on July 25. The traditional parties opposing Chávez held only five seats. The assembly, which was given six months to draft the constitution, had powers far beyond those of a traditional constitution-drafting body. On August 12, it declared the political system to be "in emergency" and gave itself powers to restructure and, if necessary, dissolve the other branches of government. This action raised fears both in Venezuela and abroad that Chávez might use his strong popular support and the discredit of Venezuela's institutions to establish an authoritarian government. On August 24, Chief Justice Cecilia Sosa resigned in protest at the designation by the assembly of a Emergency Judicial Commission (Comisión de Emergencia Judicial) empowered to fire judges and even Supreme Court justices. Her colleagues on the Supreme Court had ruled by a narrow majority that the assembly did have authority to restructure the judiciary. On the following day, the assembly issued a decree declaring a "legislative emergency," prohibiting Congress from making laws and preventing legislators from meeting to debate the political situation. Violent clashes occurred outside the Congress on August 27, when the traditional political parties, who had a majority in the legislature, attempted to session in defiance of the ban. On August 30, after congressional leaders threatened to cut off funds to the government, the assembly extended the ban to include Congress's budgetary functions, stripping it of its remaining powers.

Two weeks of grave constitutional crisis ended when President Chávez pulled back from the brink, having stepped dangerously close to total abrogation of the rule of law. He concluded a non-aggression pact with opposition leaders, brokered by the Catholic Church, which allowed Congress to reconvene and the judiciary to continue functioning. While the Emergency Judicial Commission continued to review and dismiss judges, its president insisted that the decisions were not taken unilaterally but on recommendation by the Judiciary Council, a preexisting constitutional body. Also, in mid-September the assembly was reported to have abandoned its idea of declaring a fourth emergency, which would have affected the executive branch and given it the power to dismiss the country's twenty-three elected governors and more than 300 elected mayors. Nevertheless, in the space

of six months, Chávez had accrued more power than any ruler in Venezuela since the dictatorship of Marcos Pérez Jiménez in the 1950s.

The constitutional text presented to the assembly by Chávez incorporated several proposals on civil and political rights submitted by the "Forum for Life," a coalition of nongovernmental human rights groups. For example, the draft included the prohibition of the death penalty, an article dedicated specifically to "disappearances," and provisions strengthening the rights of detainees. These included an article allowing police to hold suspects for a maximum of eight hours before bringing them before a judge and providing victims of ill-treatment or torture a right to rehabilitation. The draft constitution created a fourth branch of government, termed the Moral Branch, making the fight against corruption and abuse of power by state authorities the job of a group of institutions including the comptroller general of the republic, the attorney general's office, and a defender of the people, or ombudsman, an institution yet to be created. The drafting debates took place in twenty-one specialized committees, and a "commission for citizens' participation" was set up to receive ideas from the general public. The assembly was initially given six months to produce the final text, but in mid-September Chávez announced that he expected it to complete its work several months early, to enable a referendum to be held in November.

While the Chávez government and constituent assembly focused attention on the legal and institutional framework of government, Venezuela's serious human rights problems continued to demand immediate attention. An appalling record of inmate violence, inadequate food and medical attention, overcrowding, administrative chaos, and long delays in the administration of justice continued to make prison reform a human rights priority. According to prison official Gloria Pinho, in April, prisons were 73 percent above their maximum capacity, compared to 53 percent in July 1998. In Caracas alone 700 prisoners awaiting trial were being held in police lockups. During the period from January to April, seventy-eight prisoners died in fights, fifty-nine of them from gunshot wounds, according to information published by the nongovernmental human rights group Venezuelan Program of Education and Action in Human Rights (Programa Venezolano de Educación-Acción en Derechos Humanos, PROVEA). Ten prisoners died in El Dorado prison, located in a remote jungle region near Venezuela's border with Guyana, in a violent prison riot in December 1998. On April 17, 135 prisoners were reported to have lacerated themselves with knives in a so-called blood strike to protest their transfer to El Dorado from other prisons. According to press reports, ninety-six protesters had to be treated for their wounds in the camp infirmary by a paramedic who quickly ran out of medicine and bandages and had to buy more out of his own pocket.

President Chávez and Luis Miquilina, who at the time was minister of the interior, made encouraging promises not to tolerate abuses by Venezuelan police forces. Nonetheless, extrajudicial executions and torture of criminal suspects, which reached a peak in the mid-1990s, continued to be reported. PROVEA documented eighteen violations of the right to life by police (including the unjustified use of lethal force) during the first three months of the Chávez administration—a number comparable to the last three months of 1998 under the government of President Rafael Caldera, but reflecting a drop of 45 percent from the average from 1993 to September 1998. On June 14, for instance, Metropolitan Police intercepted nineteen-year-old Jhon Alejandro Linares Pena as he was crossing a street in Caracas. According to witnesses interviewed by the Support Network for Justice and Peace (Red de Apoyo por la Justicia y la Paz), one of the police unholstered his weapon and shot twice at Linares, who appeared to be unarmed, after he tried to escape, without hitting him. Police located Linares in a house in which he had taken refuge. A resident of the house heard Linares's pleas for help, and a gunshot. Witnesses later saw two policemen holding Linares at gunpoint, while he was lying wounded on the ground in the street. He was dead on arrival at Catia hospital a half hour later, reportedly with several gunshot wounds.

There were significantly fewer reported arbitrary arrests, due to a government policy not to authorize preventive raids into crime-ridden neighborhoods, a source of frequent police abuses and social tension in earlier years.

Constitutional guarantees, including the inviolability of the home, the right to movement and personal liberty, were restored in February in sixteen municipalities on the Venezuelan-Colombia border, which had been militarized since 1994 to combat incursions of Colombian guerrillas, kidnappings, and other

crimes. The lack of legal protection suffered for years by peasants in this region contributed to frequent arbitrary arrest and torture by military units controlling the border areas.

In July, a new Criminal Procedure Code, drafted under the Caldera administration, came into force. The new code substituted oral trials for laborious and lengthy written procedures that had contributed to interminable trial delays; it also abolished the secrecy of court proceedings and strengthened due process. The accountability of government officials was strengthened by the abolition of a legal procedure known as *nudo hecho*, a pretrial administrative investigation that had to be carried out before a public official could be charged with an offense. In past years these investigations dragged on for months, sometimes years, to the detriment of justice and equality before the law.

Defending Human Rights

The National Commission for Human Rights, established by President Caldera to provide a forum in which government officials could discuss a national agenda for human rights with representatives of nongovernmental human rights organizations, did not function during President Chávez's first year in office. The Forum for Life, a consortium of nongovernmental human rights groups, submitted detailed constitutional proposals to the constituent assembly, including long-overdue reforms such as limiting the jurisdiction of military courts and defining the conditions and permissible scope of states of emergency. Not all of these proposals were reflected in the official draft but many were adopted as written by the Forum for Life. Unlike earlier years, no reports were received of harassment, intimidation, or threats against human rights defenders.

The Role of the International Community

European Union

The European Commission approved a 5 million euro (U.S. \$5.35 million) program designed to improve prison conditions in Venezuela. At this writing, the program, which included education for prison staff, had not yet begun.

United States

Despite its misgivings about Chávez's left-leaning and authoritarian temperament (he had been denied a visa to enter the U.S. in 1998 on grounds that he had attempted the overthrow of an elected constitutional government in 1992), Washington cultivated friendly relations with the new president. U.S. concerns centered on the effects of Chávez's policies on vital U.S. interests such as oil supplies, business security, the rule of law, the armed conflict in neighboring Colombia, and drug-trafficking. President Clinton received Chávez in January and again in September. Referring later to their January 27 meeting, Clinton combined encouragement with praise: "I was tremendously impressed by his evident commitment to the use of democratic and constitutional methods to achieve the institutional reforms that the people of Venezuela clearly want." Neither Chávez nor Clinton, however, commented on whether the topic of human rights had been specifically broached in their meetings.

Organization of American States

The Inter-American Commission on Human Rights, part of the Organization of American States, sent Chávez a letter in April recognizing his "decided will" to support the inter-American system of human rights protection, and expressing "satisfaction at the high priority your Illustrious Government gives to the defense of fundamental liberties." In July the commission passed a case to the Inter-American Court of Human Rights that involved thirty-five of the 276 persons reportedly killed by Venezuelan security forces during a February 27, 1989 popular revolt, known as the Caracazo.